

25STCV20856 25STCV20856

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV20856 Hearing Date: September 16, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

16, 2026 TRIAL DATE: Not set

CASE: Carlos Moz v. Solaris Trading Corporation, et al.

CASE NO.: 25STCV20856

PLAINTIFF'S

MOTION TO QUASH OVERBROAD SUBPOENA ISSUED BY

DEFENDANT

TO J & J TIRES AND WHEELS, INC. AND REQUEST FOR MONETARY SANCTIONS IN THE
AMOUNT OF \$2,800.00

MOVING PARTY: Plaintiff

Carlos Moz

RESPONDING

PARTY: Defendant

Solaris Trading Corporation

I. BACKGROUND

On July 15,

2025, Plaintiff, Carlos Moz, commenced this action against defendants Solaris Trading Corporation dba Grand American Tires ("Solaris" or "Defendant") and Stefan Bostanian for FEHA violations, wage and hour violations, and wrongful termination.

On April 3, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants which removed all but the wage and hour claims for failure to pay wages due (Labor Code §§ 201, 1182.12, 1194, 1194.2), failure to pay minimum wages (Labor Code §§ 1182.12, 1194, 1194.2, 1197), failure to pay overtime compensation (Labor Code §§ 510, 1194), failure to provide rest breaks (Labor Code §§ 226.7, 512), and failure to provide itemized wage and hour statements (Labor Code §§ 226 et seq.).

On June 24, 2026, Plaintiff filed this motion to quash Solaris's subpoena issued to Plaintiff's subsequent employer, J & J Tires and Wheels, Inc. ("J & J"). Plaintiff seeks sanctions against Solaris and its counsel of record.

On September 3, 2026, Solaris filed an opposition.

On September 9, 2026, Plaintiff filed a reply.

As an initial matter, Defendant's motion was not timely filed. Pursuant to California Rules of Court, rule 3.1300(d), the court declines to consider Defendant's opposition.

II. LEGAL STANDARD

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands such as unreasonable violations of the right of privacy. (Code Civ. Proc., § 1987.1.)

Monetary Sanctions

In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code of Civ. Proc. § 1987.2.)

III. DISCUSSION

Plaintiff moves to quash the subpoena to J & J on the grounds it "(1) constitutes an impermissible fishing expedition, (2) seeks to impinge on Plaintiff's and third parties' privacy rights, and (3) seeks documents which are not directly relevant to this action" (Mot., p. 2:22-24.) The court agrees in considerable part with Plaintiff's third argument. The subpoena seeks the following information:

PURSUANT TO THE ATTACHED SUBPOENA, PLEASE PRODUCE THE FOLLOWING DOCUMENTS, WRITINGS AND ELECTRONICALLY STORED INFORMATION PERTAINING FROM JANUARY 1, 2022 THROUGH THE PRESENT REQUESTED BELOW:

1.
Mr. Moz's resume;
2.
Mr. Moz's curriculum vitae;
3.
Mr. Moz's personnel file;
4.
Mr. Moz's independent contractor file;
5.
Mr. Moz's applications for employment;
- 6.

Mr. Moz's applications for an independent contractor relationship;

7.

Mr. Moz's earnings records;

8.

Background checks of Mr. Moz;

9.

All w-2s issues to Mr. Moz;

10.

All 1099s issued to Mr. Moz;

11.

Mr. Moz's termination records;

12.

All contracts entered into between J & J Tires and Carlos Moz;

13.

resumes;

14.

payroll records;

15.

contracts;

16.

job descriptions for all positions worked;

17.

timesheets;

18.

unemployment claims;

19.

response to unemployment claims;

20.

termination of employment;

21.

complaints of failure to pay wages;

22.

complaints of unpaid overtime;

23.

complaints of failure to provide meal periods;

24.

complaints of failure to provide rest periods;

25.

reasonable accommodations;

26.

requests for accommodation;

27.

work restrictions;

28.

medical leaves to seek treatment;

29.

doctor's authorizations to leave work;

30.

doctor's orders to be off work;

31.

doctor's releases to return to work;

32.

disabilities;

33.

training;

34.

vocational assessments;

35.

all communications with Mr. Moz pertaining to job assignments and/or referrals.

(Carvajal Decl., ¶ 7, Ex. 1.) Following the dismissal of Plaintiff's FEHA and wrongful termination claims, only Plaintiff's wage and hour claims remain. On its face, the subpoena does not seek any information relevant to Plaintiff's for failure to pay wages due, failure to pay minimum wages, failure to pay overtime compensation, failure to provide rest breaks, and failure to provide itemized wage and hour statements, or any defenses thereto. Instead, the subpoena appears tailored to discover information regarding claims that are no longer at issue (e.g., termination of employment, reasonable accommodations, requests for accommodation). The subpoena does not seek relevant information and is therefore overbroad. Having so found, the court will quash the subpoena.

IV. CONCLUSION

The motion to quash is GRANTED. Defendant and its counsel of record are ordered to pay sanctions in the sum of \$1,260 within 30 days of this order.

Moving party to give notice, unless waived.

Dated: September 16,
2026

Brock T. Hammond

Judge of the Superior Court